

Health and safety representative election procedure

[ORGANISATION NAME] · Version [X.X] · Effective [DATE] · Owner: [ROLE] · Review annually

DRAFT TEMPLATE — not yet reviewed, and not yet your policy. This is general guidance, not legal advice; confirm with your own adviser. Fill in every **highlighted field**, delete what does not apply to your workplace, and have it approved before you issue it or run an election under it.

A health and safety representative (HSR) is a worker elected by other workers to represent them on health and safety. This procedure sets out how [ORGANISATION NAME] runs that election, so that when someone asks for one the answer is a process rather than a delay.

1. When this procedure starts

Any worker can ask for an HSR election. The request can be made by a worker, a group of workers, or a union representing them, and it does not have to be in writing or use any particular form. Once the request is made, this procedure begins.

Some HSR-related duties vary with the size of the business and whether it is in a prescribed higher-risk sector — including whether you must *initiate* the process rather than simply respond to a request. Have your adviser confirm which duties apply to [ORGANISATION NAME], and record the answer here: [e.g. "we have N workers and are / are not in a prescribed sector"].

Recording a request

Requests go to	[NAME / ROLE] — [EMAIL / PHONE]
Who records it	[ROLE] writes down who asked, the date, and which workers or areas it covers — the date starts the clock in section 2.
Acknowledged within	[e.g. 5 working days], in writing, to the person who asked.

2. The timeframe

Once a request is made, the election must be held **within two months**. Working back from that:

By	What happens
Week 1	Request acknowledged. [ROLE] starts negotiating work groups (section 3).
Weeks 2–4	Work groups agreed and written down. Number of HSRs per work group agreed.
Week 5	Nominations open — announced to every worker in the work group, by [how — noticeboard, email, toolbox meeting].
Week 6	Nominations close. [e.g. 7 days open]
Weeks 7–8	Election held if it is contested. Result declared and recorded (section 7).

Confirm the two-month period and any prescribed steps with your adviser before issuing.

3. Work groups come first

An HSR represents a **work group**, so the work groups have to exist before anyone can be elected. They are *negotiated* with the workers who will be in them — not simply announced.

Group workers so that an HSR can realistically represent them. Consider:

- where people work, and whether they share a site, shift or roster;
- the nature of the work and the risks in it — a group should share a risk profile;
- shift patterns, so night and weekend workers are actually represented;
- how the group can reach their HSR, and the HSR reach them;
- the number of workers in the group, and how many HSRs it needs.

Record the outcome — the groups, who is in each, and how many HSRs each has — and give it to the workers. If agreement cannot be reached, follow [your dispute process / take advice].

Snag's "work groups" are not these work groups. Snag has a feature called work groups, used for organising sites and people inside the app. It is a product concept and carries no statutory meaning. Do not assume the two line up: negotiate HSR work groups on their merits, then decide separately whether it is convenient to mirror them in Snag.

4. Who can stand, and who votes

Can be nominated	Any member of the work group. An HSR must be a worker in the group they represent — they are elected by their peers, not appointed by management.
Can vote	Every worker in that work group, including part-time, casual, fixed-term and (where they are workers of this PCBU) contractors and labour-hire staff. Confirm the treatment of contractors and labour-hire workers for your arrangements.
Management's part	Facilitate, pay for the time, and stay out of the choice. Do not nominate candidates, campaign, or indicate a preference.

5. Running the election

1. **Call for nominations** in writing to everyone in the work group, saying what an HSR does, the term, the training entitlement, when nominations close, and who to send them to ([NAME / ROLE]).
2. **If the number of nominations equals the number of positions**, those nominated are elected unopposed. Record it and move to section 7 — no ballot is needed.
3. **If it is contested**, hold a **secret ballot**. Every worker in the work group gets one vote per position. Method: [paper ballot / online ballot — name the tool].
4. **Who runs the ballot:** [ROLE — someone not standing, and ideally not the workers' manager]. Workers or their union may ask to observe the count; agree to that.
5. **If nobody is nominated**, record that, tell the work group, and offer to run it again in [e.g. 6 months] or on request. A vacant position is not a failure to facilitate, provided the process was genuinely offered.

6. **Declare the result** to the whole work group, however you announced nominations.

Workers must be given **paid time** to nominate, vote, and take part.

6. Term, training and vacancies

Term	Three years, then re-election. An HSR may stand again.
Ends early if	They resign the role in writing, leave the work group or the organisation, or are removed by the workers who elected them under [process / take advice] .
Vacancy	Run sections 5–7 again for that position within [e.g. 2 months] .
Training	An elected HSR is entitled to paid leave to attend approved HSR training. [ROLE] books it within [e.g. 3 months] of the election and pays for the course and the time. Confirm the current entitlement (days per year and which courses qualify) — it is prescribed, and this template deliberately does not state a number.

Training is the part that gets quietly dropped. An HSR elected and never trained is the most common way this obligation fails in practice. Put the booking on **[ROLE]**'s task list on the day the result is declared, not later.

7. Recording the outcome

Keep, for each election: the request and its date, the work groups agreed, the call for nominations, the nominations received, the ballot result or the record of an unopposed election, the declaration, and the training booked.

Held at: **[LOCATION]**. Retention: **[e.g. 7 years]**.

Snag has no HSR role today. Its roles are worker, supervisor and officer admin, and there is no HSR-specific visibility. So the register below lives outside the app for now — the document library is a reasonable home for it, filed alongside this procedure. Do not represent an HSR as a "supervisor" in Snag to approximate the role: it grants investigation and management rights that election to an HSR position does not confer.

HSR register

Work group	HSR name	Elected on	Term ends	Training completed

Disclaimer. This template is general guidance prepared as a starting point, not legal advice, and it is not a substitute for the Health and Safety at Work Act 2015, its regulations, or WorkSafe's current guidance on worker engagement, participation and representation. The timeframes, entitlements and eligibility rules referred to here are prescribed and must be verified as they stand when you issue this document.

The Health and Safety at Work Amendment Act 2026's ultimate form and survival are contingent on the 7 November 2026 general election and on decisions the next government may make before its 1 April 2027 commencement date. This document should be reviewed by a qualified New Zealand employment / health-and-safety lawyer before it is issued, and revisited once the election outcome and WorkSafe's implementation guidance are known.